

Tentative Rulings for June 29, 2026 Department M205

**To request oral argument, you must notify
Judicial Secretary Kari Gates at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M205 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 571 6184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2504131	WELLS FARGO BANK, N.A. VS SKRIPEK	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling:

Hearing/Motion off calendar. Parties reached a stipulated agreement.

2.

CASE #	CASE NAME	HEARING NAME
CVME2511171	NAVY FEDERAL CREDIT UNION VS BROWN	MOTION TO COMPEL FURTHER RESPONSES OF DEFENDANT SHANAE BROWN TO PLAINTIFF'S FIRST SET OF INTERROGATORIES, REQUESTS FOR ADMISSION, AND REQUEST FOR PRODUCTION

Tentative Ruling:

Moving party: Plaintiff, Navy Federal Credit Union
Represented by: Silverman Theologou, LLP

Responding party: Defendant, Shanae Brown
Represented by: *self-represented*

Motion filed: 4/1/26
Opposition filed: 4/21/26
Reply filed: none

Meet and Confer Efforts

A motion to compel a further response to interrogatories, requests for production of documents, or requests for admission must be accompanied by a meet and confer declaration. (CCP § 2030.300(b), § 2031.310(b); § 2033.290(b).) The declaration must state facts showing a “reasonable and good faith attempt, **either in person, by telephone, or by videoconference**” to resolve informally the issues presented by the motion before filing the motion. (CCP § 2016.040(a).)

“The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1159 citing, *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016-2017.) “Failing to make a “reasonable and good faith attempt” to resolve the issues informally before a motion to compel is filed constitutes a “misuse of the discovery process” for which monetary sanctions can be imposed. (*Id.* at § 8:1174.)

Here, Plaintiff served the SRs, RFAs, and RPDs on 12/17/25. (Dec.Kostelidis ¶ 2, Ex. “A”.) On 1/26/26, Plaintiff sent a meet and confer letter stating that no discovery

responses had been received. (*Id.* ¶ 3, Ex. “D”.) On 1/29/26, Plaintiff received Ms. Brown’s discovery responses by mail. (*Id.* ¶ 4, Ex. “B”.) Plaintiff determined the responses were insufficient, evasive, and not Code-compliant, and sent a detailed meet and confer letter on 2/2/26. (*Id.* ¶¶5-6, Ex. “C”.) Defendant did not provide supplemental responses by the deadline, or thereafter. (*Id.* ¶ 7.) Plaintiff has **not** sufficiently met and conferred to support this motion **because it did not meet and confer “in person, by telephone, or by videoconference” as required by CCP § 2016.040(a).** Notably, at the prior hearing held on 5/4/26, the Court continued the motion to allow Plaintiff to properly meet and confer in the manner required by CCP § 2016.040(a). The Court also stated: “If Defendant properly responds to the discovery demands, Plaintiff is to notify this court to vacate the hearing. If Defendant does not properly respond to the discovery demands, Plaintiff is to file a Declaration stating the efforts made to meet and confer.” (Minute Order of 5/4/26.) As of 6/25/26, the motion remains on calendar. And no meet and confer declaration has been filed since the 5/4/26 hearing.

The Motion to Compel is **CONTINUED to August 6, 2026 at 8:00 a.m., Dept. M205** for further meet and confer efforts. Remote appearance allowed.

1. Plaintiff is to properly meet and confer in the manner required by CCP § 2016.040(a).
2. Plaintiff and Defendant are to meet and confer and resolve any deficiencies in Defendant’s responses.
3. If Defendant properly responds to the discovery demands, Plaintiff is to notify this court to vacate the hearing. If Defendant does not properly respond to the discovery demands, Plaintiff is to file a Declaration stating the efforts made to meet and confer.
4. Plaintiff is to give notice.

3.

CASE #	CASE NAME	HEARING NAME
CVME2512617	WELLS FARGO BANK, N.A. VS SAMANIEGO	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: Motion unopposed.

Moving party: Plaintiff Wells Fargo Bank, N.A.
Responding party: Defendant Suridai L. Samaniego

Motion filed: 03/23/2026

Opp. filed: None

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 850.) When a plaintiff is the moving party, the plaintiff has the burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (C.C.P. § 437c(p)(1).) The plaintiff does not have the burden to disprove affirmative defenses, as the burden then shifts to the defendant to show that a triable issue exists. (*Id.*)

The elements for a breach of contract claim are: (1) contract; (2) plaintiff's performance or excuse for nonperformance; (3) breach; and (4) damages. (*Wall Street Network, Ltd. v. N. Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

Plaintiff meets its initial burden in demonstrating that Defendant applied for a credit card and later failed to make payments, resulting in an outstanding balance of \$11,704.45. (Hogan Decl. ¶¶ 9-23, Exhs. 1-2.)

Plaintiff also filed a memorandum of costs on March 19, 2026, seeking costs of \$815.00. Under Local Rule 1045(b), the pertinent part provides:

The entry of costs and fees shall be in accordance with the provisions of Code of Civil Procedure section 685.090, California Rules of Court rules 8.104 and 8.751 describing what constitutes entry, and any other applicable provision of law. In cases where a party is entitled to costs because a motion to tax or strike a cost memo was not brought, such costs shall be deemed entered upon the expiration of the time for making the motion.

Here, Defendant has not filed a motion to tax costs. Accordingly, once the time has passed, the costs are deemed a part of the judgment.

The Court **GRANTS** the unopposed MSJ. Court to sign the proposed order and proposed judgment.

4.

CASE #	CASE NAME	HEARING NAME
CVME2512883	TD BANK USA, N.A. VS VILLA	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling: Motion unopposed.

Motion is **GRANTED**. A motion for judgment on the pleadings is subject to the same rules governing demurrers; and, like a demurrer, the grounds for the motion must appear on the face of the challenged pleading or from any matter of which the judge is required to take judicial notice. (CCP 438(d); Hardy v. America's Best Home Loans (2014) 232 Cal.App4th 795, 802.) The court finds Ps complaint states facts sufficient to constitute a cause of action against Defendant, and the answer does not state facts sufficient to constitute a defense to the complaint. (CCP 438(b)(1), (c)(1)(A).) Therefore, Plaintiff's motion is granted.

Judgment shall be entered in favor of Plaintiff TD BANK USA, N.A. and against Defendant(s) Carolina Villa as follows: Principal \$1,824.36, Court Costs \$353.00, Attorney's Fees \$0.00 Interest \$0.00 Total \$2,117.36.

Court to sign the proposed judgment.

5.

CASE #	CASE NAME	HEARING NAME
CVME2514010	JPMORGAN CHASE BANK, N.A. VS MILAM	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY OF JUDGMENT

Tentative Ruling: Motion unopposed.

IT IS ORDERED that the dismissal as to GERALD MILAM submitted in the above-entitled action be set aside and that Plaintiff JPMorgan Chase Bank, N.A., shall have and recover from Defendant GERALD MILAM the principal sum of \$13,349.10 plus court costs in the sum of \$0.00 for a total judgment of \$13,349.10. Court to sign the proposed order and the proposed judgment.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2206793	CITIBANK N.A. VS TORRES	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY OF JUDGMENT

Tentative Ruling: Motion unopposed.

IT IS ORDERED that the dismissal as to Dina E Torres entered on April 27, 2023 be set aside and vacated, and judgment entered in favor of Plaintiff CITIBANK, N.A., and against Defendant Dina E Torres, in the principal sum of \$5,075.00, and court costs in the sum of \$603.50 for a total judgment of \$5,678.50. Court to sign the proposed order and the proposed judgment.